



LIN 26/021

Migration (Temporary Visa Subclasses for PIC 4005 and 4007) Instrument 2026

I, Lila Caplice, delegate of the Minister, make the following instrument.

Dated 17 February 2026

Lila Caplice
Executive Level 2 / Senior Director
Health Policy and Assurance Branch
Chief Medical Officer Division
Department of Home Affairs

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<i>Migration (Temporary visa subclass for the purpose of health requirement)</i>	
<i>Specification (LIN 22/007) 2022</i>	3

1 Name

This instrument is the *Migration (Temporary Visa Subclasses for PIC 4005 and 4007) Instrument 2026*.

2 Commencement

This instrument commences on the day after it is registered.

3 Authority

This instrument is made under subparagraphs 4005(2)(b)(ii) and 4007(1A)(b)(ii) of Schedule 4 to the *Migration Regulations 1994*.

4 Definitions

Note: A number of expressions used in this instrument are defined in section 5 of the Act, including the following:

- (a) non-citizen;
- (b) temporary visa.

In this instrument:

Act means the *Migration Act 1958*.

commencement day means the day on which this instrument commences.

Regulations means *Migration Regulations 1994*.

5 Schedule

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

6 Temporary visa subclasses

For the purposes of subparagraphs 4005(2)(b)(ii) and 4007(1A)(b)(ii) of Schedule 4 to the Regulations, a visa subclass mentioned in an item in the following table is specified.

Item	Subclass
1	Subclass 160 (Business Owner (Provisional))
2	Subclass 161 (Senior Executive (Provisional))
3	Subclass 162 (Investor (Provisional))
4	Subclass 163 (State/Territory Sponsored Business Owner (Provisional))
5	Subclass 164 (State/Territory Sponsored Senior Executive (Provisional))
6	Subclass 165 (State/Territory Sponsored Investor (Provisional))

7	Subclass 173 (Contributory Parent (Temporary))
8	Subclass 188 (Business Innovation and Investment (Provisional))
9	Subclass 300 (Prospective Marriage)
10	Subclass 309 (Partner (Provisional))
11	Subclass 445 (Dependent Child)
12	Subclass 489 (Skilled Regional (Provisional))
13	Subclass 491 (Skilled Work Regional (Provisional))
14	Subclass 494 (Skilled Employer Sponsored Regional (Provisional))
15	Subclass 820 (Partner)
16	Subclass 884 (Contributory Aged Parent (Temporary))

7 Operation of this instrument

Despite the repeal of *Migration (Temporary visa subclass for the purpose of health requirement) Specification (LIN 22/007) 2022 (LIN 22/007)* by Schedule 1 to this instrument, LIN 22/007 as in force immediately before the commencement day continues to apply in relation to an application for a visa if:

- (a) the application is taken to have been made by a person before, on or after the commencement day in accordance with regulation 2.08 or 2.08B of the Regulations; and
- (b) for an application taken to have been made in accordance with regulation 2.08 of the Regulations—the non-citizen mentioned in paragraph 2.08(1)(a) of the Regulations applied for the visa before the commencement day; and
- (c) for an application taken to have been made in accordance with regulation 2.08B of the Regulations—the original applicant mentioned in paragraph 2.08B(1)(a) of the Regulations applied for the visa before the commencement day.

Schedule 1—Repeals

Migration (Temporary visa subclass for the purpose of health requirement) Specification (LIN 22/007) 2022

1 The whole of the instrument

Repeal the instrument.